

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

-----X
JACQUELINE DAVIS,

Plaintiff,

- against -

THE CITY OF NEW YORK, DETECTIVE JEREMY
VEIT, OFFICER FREDERIC MANNEY, and
Police Officers "JOHN DOE" #1-5, Individually
and in their Official Capacities,

Defendants.
-----X

To the above named Defendants:

YOU ARE HEREBY SUMMONED to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: Bronx, New York
June 27, 2017

Yours, etc.,
KRIEGER, WILANSKY & HUPART, ESQS.

By: 

Brett R. Hupart

Attorneys for Plaintiff

5602 Broadway

Bronx, New York 10463

(718) 432-0500

To: THE CITY OF NEW YORK
100 Church Street, 4th Floor
New York, New York 10007

DETECTIVE JEREMY VEIT
Shield #2516

Index No.:

Date Purchased:

Plaintiff designates
Bronx County
as the place of trial

The basis of the venue:
Situs of Incident

SUMMONS

2120 Ryer Avenue
Bronx, New York 10457

OFFICER FREDERIC MANNEY
Shield #22317
2120 Ryer Avenue
Bronx, New York 10457

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

Index No.:

-----X
JACQUELINE DAVIS,

COMPLAINT

Plaintiff,

- against -

THE CITY OF NEW YORK, DETECTIVE JEREMY
VEIT, OFFICER FREDERIC MANNEY, and
Police Officers "JOHN DOE" #1-5, Individually
and in their Official Capacities,

Defendants.

-----X
Plaintiff, by her attorneys, KRIEGER, WILANSKY & HUPART, ESQS.,
complaining of the defendants, respectfully alleges upon information and belief, as
follows:

AS AND FOR A FIRST CAUSE OF ACTION

1. That the subject arrest, incarceration and prosecution occurred in the
County of Bronx, City and State of New York.
2. At all times herein stated, the defendant, THE CITY OF NEW YORK,
was and still is a municipal corporation duly organized and existing under and by virtue
of the laws of the State of New York.
3. Upon information and belief, that at all times hereinafter mentioned, the
defendant, THE CITY OF NEW YORK, its agents, servants and employees operated,
maintained and controlled a police force known as THE NEW YORK CITY POLICE
DEPARTMENT, including all the police officers thereof.
4. At all times hereinafter mentioned, defendant, DETECTIVE JEREMY
VEIT, was an employee of defendant, THE CITY OF NEW YORK.

5. At all times hereinafter mentioned, defendant, DETECTIVE JEREMY VEIT, was acting for, upon, in the course of, and in the furtherance of the interests of THE CITY OF NEW YORK and within the scope of his employment.

6. At all times hereinafter mentioned, defendant, OFFICER FREDERIC MANNEY, was an employee of defendant, THE CITY OF NEW YORK.

7. At all times hereinafter mentioned, defendant OFFICER FREDERIC, MANNEY, was acting for, upon, in the course of, and in the furtherance of the interests of THE CITY OF NEW YORK and within the scope of his employment.

8. At all times herein stated defendant, OFFICER "JOHN DOE" #1, was an employee of defendant, THE CITY OF NEW YORK.

9. At all times hereinafter mentioned, defendant, OFFICER "JOHN DOE" #1, was acting for, upon, in the course of, and in the furtherance of the interests of THE CITY OF NEW YORK and within the scope of his employment.

10. At all times herein stated defendant, OFFICER "JOHN DOE" #2, was an employee of defendant, THE CITY OF NEW YORK.

11. At all times hereinafter mentioned, defendant, OFFICER "JOHN DOE" #2, was acting for, upon, in the course of, and in the furtherance of the interests of THE CITY OF NEW YORK and within the scope of his employment.

12. At all times herein stated defendant, OFFICER "JOHN DOE" #3, was an employee of defendant, THE CITY OF NEW YORK.

13. At all times hereinafter mentioned, defendant, OFFICER "JOHN DOE" #3, was acting for, upon, in the course of, and in the furtherance of the interests of THE CITY OF NEW YORK and within the scope of his employment.

14. At all times herein stated defendant, OFFICER "JOHN DOE" #4, was an employee of defendant, THE CITY OF NEW YORK.

15. At all times hereinafter mentioned, defendant, OFFICER "JOHN DOE" #4, was acting for, upon, in the course of, and in the furtherance of the interests of THE CITY OF NEW YORK and within the scope of his employment.

16. At all times herein stated defendant, OFFICER "JOHN DOE" #5, was an employee of defendant, THE CITY OF NEW YORK.

17. At all times hereinafter mentioned, defendant, OFFICER "JOHN DOE" #5, was acting for, upon, in the course of, and in the furtherance of the interests of THE CITY OF NEW YORK and within the scope of his employment.

18. That notice of plaintiff's claim and intention to sue thereon and the dates when and the places at which the alleged injuries and damages were sustained, was duly served and filed by the plaintiff with defendant THE CITY OF NEW YORK on the 15th of July 2016, and an amended notice of claim was served on 27th day of September 2016, by serving the said Notices of Claim on the Comptroller's Office of the City of New York, within ninety days of when all causes of action had accrued and before the commencement of this action; that the defendants have failed and refused to pay or adjust the said claim; that more than thirty days have elapsed since the service of the said claim; and that this action was commenced within one year after the causes of action accrued.

19. That on May 16, 2017, upon the demand of the defendant THE CITY OF NEW YORK, plaintiff was produced for the purpose of holding a 50-h hearing in this matter and defendant conducted such a 50-h hearing on that date.

20. That all conditions precedent to filing suit have been satisfied.

21. That on or about June 29, 2016, plaintiff, JACQUELINE DAVIS, was falsely arrested by defendants while lawfully in 1715 Walton Avenue, Apartment 2A, in the County of Bronx, City and State of New York.

22. The said occurrence and the injuries resulting therefrom was caused wholly and solely through and by the negligent and intentional acts of the defendants, in the failure to properly investigate the underlying events; failure to heed exculpatory evidence; failure to investigate potential suspects; failure to follow-up on leads; in improper hiring; negligent deployment; negligent supervision; negligent training; retaining incompetent personnel; carelessly, recklessly and negligently hired and retained incompetent personnel; failing to follow Police Department rules, regulations and procedures; failure to control their agents, servants and/or employees; and arresting plaintiff without cause or justification.

23. That as a result of the aforesaid negligent and intentional acts of the defendants, the plaintiff, JACQUELINE DAVIS, was deprived of her liberty and was subjected to scorn and ridicule; suffered shock and embarrassment; deprived of her civil liberty; detained; falsely arrested; caused to be degraded in the esteem of the community, her friends and her peers; sustained loss of liberty, emotional harm, grievous injury to various parts of her body, embarrassment, and injury to reputation; that she suffered pecuniary loss; that plaintiff, JACQUELINE DAVIS, has suffered and will continue to suffer great pain and anguish of body and mind; that plaintiff, JACQUELINE DAVIS, has necessarily received medical care and attention for a long period of time, by reason of the injuries sustained by her; that plaintiff, JACQUELINE DAVIS, has, is and will continue to receive medical treatment and medicines for which expenses have, are and

will continue to be incurred in an effort to cure and treat her said injuries; that plaintiff, JACQUELINE DAVIS, has been rendered unable to attend to her usual vocation, avocations, and activities as she had theretofore done, and her injuries are of a permanent, protracted and disabling nature.

24. That in consequence of the foregoing, the plaintiff, JACQUELINE DAVIS, was damaged in an amount in excess of all lower courts that would otherwise have jurisdiction herein.

AS AND FOR A SECOND CAUSE OF ACTION

25. The plaintiff, JACQUELINE DAVIS, repeats, reiterates and realleges each and every allegation of the complaint contained in paragraphs marked and numbered "1" through "23" as though fully set forth herein at length.

26. That from her arrest on or about June 29, 2016 up to and including on or about July 1, 2016 the plaintiff, JACQUELINE DAVIS, was falsely imprisoned.

27. The said occurrence and the injuries resulting therefrom was caused wholly and solely through and by the negligent and intentional acts of the defendants.

28. The said occurrence and the injuries resulting therefrom was caused wholly and solely through and by the negligent and intentional acts of the defendants, in the failure to properly investigate the underlying events; failure to heed exculpatory evidence; failure to investigate potential suspects; failure to follow-up on leads; in improper hiring; negligent deployment; negligent supervision; negligent training; retaining incompetent personnel; carelessly, recklessly and negligently hired and retained incompetent personnel; failing to follow Police Department rules, regulations and

procedures; failure to control their agents, servants and/or employees; and imprisoning plaintiff without cause or justification.

29. That as a result of the aforesaid negligent and intentional acts of the defendants, the plaintiff, JACQUELINE DAVIS, was deprived of her liberty and was subjected to scorn and ridicule; suffered shock and embarrassment; deprived of her civil liberty; detained; falsely incarcerated; caused to be degraded in the esteem of the community, her friends and her peers; sustained loss of liberty, emotional harm, grievous injury to various parts of her body, embarrassment, and injury to reputation; that she suffered pecuniary loss; that plaintiff, JACQUELINE DAVIS, has suffered and will continue to suffer great pain and anguish of body and mind; that plaintiff, JACQUELINE DAVIS, has necessarily received medical care and attention for a long period of time, by reason of the injuries sustained by her; that plaintiff, JACQUELINE DAVIS, has, is and will continue to receive medical treatment and medicines for which expenses have, are and will continue to be incurred in an effort to cure and treat her said injuries; that plaintiff, JACQUELINE DAVIS, has been rendered unable to attend to her usual vocation, avocations, and activities as she had theretofore done, and her injuries are of a permanent, protracted and disabling nature.

30. That in consequence of the foregoing, the plaintiff, JACQUELINE DAVIS, was damaged in an amount in excess of all lower courts that would otherwise have jurisdiction herein.

AS AND FOR A THIRD CAUSE OF ACTION

31. The plaintiff, JACQUELINE DAVIS, repeats, reiterates and realleges each and every allegation of the complaint contained in paragraphs marked and numbered "1" through "29" as though fully set forth herein at length.

32. That from on or about June 29, 2016 through on or about July 1, 2016, the defendants, acting jointly and severally, caused the plaintiff, JACQUELINE DAVIS to be, maliciously, unlawfully, wrongfully and without any order, warrant or process of any court, and without any legal right, falsely arrested, falsely imprisoned, detained, handcuffed, incarcerated, harassed, restrained and deprived of her liberty.

33. That as a consequence of the wrongful acts of the defendants, the plaintiff, JACQUELINE DAVIS, suffered damage in an amount in excess of all lower courts that would otherwise have jurisdiction herein.

AS AND FOR A FOURTH CAUSE OF ACTION

34. The plaintiff, JACQUELINE DAVIS, repeats, reiterates and realleges each and every allegation of the complaint contained in paragraphs marked and numbered "1" through "32" as though fully set forth herein at length.

35. That the aforesaid defendants falsely, maliciously and without probable cause and provocation charged the plaintiff, JACQUELINE DAVIS, with various crimes, including, but not limited to, criminal possession of a firearm, criminal possession of a controlled substance, criminal possession of a weapon, possession of ammunition, unlawful possession of marijuana and endangering the welfare of a child, and caused a criminal proceeding to be commenced against her.

36. The commencement and prosecution of the criminal proceeding was malicious and began in malice and without probable cause by said defendants, acting jointly and severally, knowing that the proceeding should not have taken place.

37. That all charges and criminal proceedings were terminated in plaintiff JACQUELINE DAVIS's favor.

38. That all charges were dismissed on July 18, 2016.

39. The said occurrence and the injuries resulting therefrom was caused wholly and solely through and by the negligent and intentional acts of the defendants, in the failure to properly investigate the underlying events; failure to heed exculpatory evidence; failure to investigate potential suspects; failure to follow-up on leads; in improper hiring; negligent deployment; negligent supervision; negligent training; retaining incompetent personnel; carelessly, recklessly and negligently hired and retained incompetent personnel; failing to follow Police Department rules, regulations and procedures; failure to control their agents, servants and/or employees; and prosecuting plaintiff without cause or justification.

40. That as a result of the aforesaid negligent and intentional acts of the defendants, the plaintiff, JACQUELINE DAVIS, was deprived of her liberty and was subjected to scorn and ridicule; suffered shock and embarrassment; deprived of her civil liberty; detained; maliciously prosecuted; caused to be degraded in the esteem of the community, her friends and her peers; sustained loss of liberty, emotional harm, grievous injury to various parts of her body, embarrassment, and injury to reputation; that she suffered pecuniary loss; that plaintiff, JACQUELINE DAVIS, has suffered and will continue to suffer great pain and anguish of body and mind; that plaintiff, JACQUELINE

DAVIS, has necessarily received medical care and attention for a long period of time, by reason of the injuries sustained by her; that plaintiff, JACQUELINE DAVIS, has, is and will continue to receive medical treatment and medicines for which expenses have, are and will continue to be incurred in an effort to cure and treat her said injuries; that plaintiff, JACQUELINE DAVIS, has been rendered unable to attend to her usual vocation, avocations, and activities as she had theretofore done; her injuries are of a permanent, protracted and disabling nature; and she was further caused to expend monies for her criminal defense.

41. That in consequence of the foregoing, the plaintiff, JACQUELINE DAVIS, was damaged in an amount in excess of all lower courts that would otherwise have jurisdiction herein.

AS AND FOR A FIFTH CAUSE OF ACTION

42. The plaintiff, JACQUELINE DAVIS, repeats, reiterates and realleges each and every allegation of the complaint contained in paragraphs marked and numbered "1" through "40" as though fully set forth herein at length.

43. That on the aforesaid dates the defendants, acting jointly and severally, assaulted, battered, humiliated, harassed, unlawfully had arrested, unlawfully detained, unlawfully interrogated, falsely incarcerated, maliciously prosecuted the plaintiff, JACQUELINE DAVIS, and deprived her of her civil rights.

44. That the defendants, and that of its agents, servants and employees, violated the civil rights of plaintiff, JACQUELINE DAVIS, guaranteed by the Due Process Clauses of the 5th and 14th amendments to the Constitution of the United States,

the Equal Protection Clause of the 14th amendment to the Constitution of the United States, 42 U.S.C. 1983 and 1988, and the Constitution of the State of New York.

45. That the intentional and negligent actions of the defendants, each of them, their agents, servants and/or employees, occurred from on or about June 29, 2016, the date of arrest, through and continuing until the dismissal of the criminal charges on July 18, 2016.

46. That by reason of the foregoing, the plaintiff, JACQUELINE DAVIS, was caused to be severely injured and suffer other damages.

47. That in consequence of the foregoing, the plaintiff, JACQUELINE DAVIS, was damaged in an amount in excess of all lower courts that would otherwise have jurisdiction herein.

WHEREFORE, the plaintiff demands judgment against the defendants on her FIRST, SECOND, THIRD, FOURTH, and FIFTH, Causes of Action, each in an amount in excess of all lower courts that would otherwise have jurisdiction herein, together with the costs and disbursements of this action.

Dated: Bronx, New York
June 27, 2017

Yours, etc.,
KRIEGER, WILANSKY & HUPART, ESQS.

By: 

Brett R. Hupart

Attorneys for Plaintiff

5602 Broadway

Bronx, New York 10463

(718) 432-0500

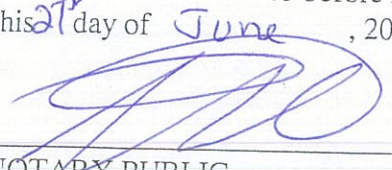
VERIFICATION BY AFFIDAVIT

STATE OF NEW YORK)

COUNTY OF Bronx) ss:Jacqueline Davis, being duly sworn deposes and says:

I am a Plaintiff in the action herein: I have read the foregoing Summons & Complaint and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my personal files.

Dated: Bronx, New York

June 27, 2017X Jacqueline DavisSubscribed and sworn to before me
this 27 day of June, 2017
NOTARY PUBLIC

MICHELLE P. LOPEZ
Notary Public, State of New York
No. 01LO6060408
Qualified in Bronx County
Commission Expires February 4, 2018

Index No.

Year

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

JACQUELINE DAVIS,

Plaintiff,

-against-

**THE CITY OF NEW YORK, DETECTIVE JEREMY VEIT,
OFFICER FREDERIC MANNEY, and Police Officers
"JOHN DOE" #1-5, Individually and in their Official Capacities,**

Defendants.

SUMMONS & VERIFIED COMPLAINT

KRIEGER, WILANSKY & HUPART, ESQS.

Attorneys at Law
Attorneys for Plaintiff
5602 Broadway
Bronx, New York 10463
(718) 432 - 0500

To:

Dated:

Attorneys for

PLEASE TAKE NOTICE

Notice
of
Entry

that the within is a true copy of
within named Court on

entered in the office of the clerk of the

Notice of
Settleme
nt

That an Order of which the within is a true copy will be presented for settlement to the
Hon. one of the judges of the within named Court, at on , at o'clock

Dated: Bronx, New York

KRIEGER, WILANSKY & HUPART, ESQS.
Attorneys for Plaintiff
5602 Broadway-2nd Floor
Bronx, New York 10463

TO: